

*judicii aliquod fecerit* (but when he has no jurisdiction, [76 b] *non est judex*) *non videtur dolo malo fecisse, quia parere necesse est*, was well allowed, but it is not of necessity to obey him who is not Judge of the cause, no more than it is a mere stranger, for the rule is, *judicium a non suo judice datum nullius est momenti*. And that fully appears in

defendant's jurisdiction, it was held that no action lay. *Ackerley v. Parkinson*, 3 M. and S. 411.

So in the case of magistrates, if they have no jurisdiction over an offence, and proceed to convict, an action lies against them before the conviction is quashed. *Crepps v. Durden*, Cowp. 640. But if they have jurisdiction over the subject matter, their judgment cannot be examined in an action. *Brittain v. Kinnaird*, 1 Brod. and Bing. 432. S. C. 4 B. Moore, 50. To entitle a party however to bring an action, the want of jurisdiction must appear upon the face of the conviction, for a conviction is conclusive evidence of the facts it alleges, as well in respect of such facts as are necessary to give them jurisdiction, as upon the merits of the conviction. *Gray v. Cookson*, 16 East, 13. *Brittain v. Kinnaird*, *ubi sup.* "It is a general rule and principle of law, that where justices of the peace have an authority given to them by an Act of Parliament, and they appear to have acted within the jurisdiction so given, and to have done all that they are required by the Act to do in order to originate their jurisdiction, a conviction drawn up in due form, and remaining in force, is a protection in any action brought against them for the act so done," per Abbot, C.J. *Baslen v. Carew*, 3 Barn. and Cress. 652. S. C. 5. Dow. & Ryl. 558. If a magistrate has no jurisdiction by reason of the existence of facts which he cannot be supposed to know, but which are peculiarly in the knowledge of the party grieved, no action can be maintained against him if he received no notice of such facts. *Pike v. Carter*, 3 Bing. 78. But if a magistrate, after a regular conviction of a party, proceeds to commit him, an action will lie against him if his warrant of commitment does not shew an offence over which he had jurisdiction. *Wicks v. Clutterbuck*, 2 Bing. 483.

A sheriff is not liable to an action for executing the process of a Court of competent jurisdiction, though there be no cause of action or though the process be erroneous. *Tarlton v. Fisher*, Dougl. 671. *Cameron v. Lightfoot*, 2 Black. 1190. *Wynne v. Boughey*, O. Bridgm. 573. On the contrary he is bound to execute the process of the Court, *Benyon v. Evelyn*, O. Bridgm. 336. *Jackson v. Hunter*, 6 T. R. 73. And the sheriff cannot take advantage of an error in process, in an action brought against him for an escape. *Drury's case*, 8 Co. 142. b. Thus, where the plaintiff had judgment for 55l. 10s. and the *ca. sa.* upon which the defendant was taken in execution, was only for 51l. 2s. this mistake is not assignable for error by the sheriff. *Jacques v. Cesar*, 2 Saund. 100. So upon an escape from the fleet of a prisoner taken in execution by the sheriff, when the writ of *capias* was informal, the warden is liable to the debt and costs. *Wynne v. Boughey*, O. Bridgm. 570. And in an action for an escape on *mesne* process out of an inferior Court, against the bailiff, the defendant cannot take advantage of any error in the process below, although the defendant below might have availed himself of it. *Bull v. Steward*, 1 Wils. 255. So in an action for rescuing a debtor taken upon *mesne* process sued out of the Palace Court, it is not a sufficient ground to arrest the judgment, that it was not alleged that the cause of action in the Inferior Court arose within the jurisdiction, or that it was not alleged that the party below did not appear at the return of the writ. *Bently v. Donelley*, 8 T. R. 127. *Vid. Bromfield v. Jones*, 4 Barn. & Cress. 385. The difference is where the judgment is merely void or where it is only erroneous, and that depends on another distinction, viz. where the Court in which judgment was obtained had cognizance of the cause, and where not. *Gold v. Strole*, Carth. 148. S. C. 3 Mod. 324. and *vid. Ognell v. Paston*, Cro. Eliz. 165. *Weaver v. Clifford*, 2 Bulstr. 62. Cro. Jac. 3. *Burton v. Eyre*, Cro. Jac. 288. Although the sheriff is bound to execute the process of the Court, yet if a writ be directed to one who is not the officer of the Court, he is not bound to execute it, and if he does he will be liable to an action. Therefore where a writ of *feri facias*, directed in the first instance to the bailiff of the Isle of Ely, out of K. B. was executed by the bailiff, it was held that such writ was erroneous and void, and the bailiff was guilty of a trespass against the party whose goods were taken in execution. *Grant v. Bagge*, 3 East, 128. *Vid. Bracebridge v.*